

May 22, 2019



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20789
(FIRST REVISION)

EXPIRATION DATE: 2021-01-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Federal Express Corporation
Memphis, TN
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in air commerce of hazardous materials by cargo aircraft installed in a Crew Rest Module (CRM). This special permit provides no relief from the HMR other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
 - d. This special permit serves as an "exemption" as defined in 1;1.1.3 of ICAO TI and as a "Competent Authority Approval" as defined in 49 CFR §107.1.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and the ICAO TI.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.202(a)(7) and section 5;4.1.5.1 of the ICAO TI in that the CRM is indicated as the type of package; Part 172 Subpart D (except 172.301(c)) in that the special permit number must be marked on the the CRM exterior) and Subpart E and sections 5;2.1 and 5;3.1 of the ICAO TI in that marking and labeling of the

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CRM is not required; §§ 173.302(f)(3) and 173.302(f)(4) and US18 of the ICAO TI in that the outer packaging must meet the specified requirements; § 173.309(c)(5) and Packing Instruction 213 of the ICAO TI in that the fire extinguisher is installed in the CRM; § 173.309(c)(2), fire extinguishers exceeding 900 mL (55 cubic inches) capacity may contain liquefied compressed gas; 173.168(d) and Packing Instruction 565 and US18 in that chemical oxygen generators may be installed in the CRM; § 173.168(e) in that the oxygen generator and equipment are not marked to indicate the presence of an oxygen generator; and § 175.30(b) in that the shipment is inspected by an Aviation Maintenance Technician for serviceability prior to loading.

5. BASIS: This special permit is based on the application of Federal Express Corporation dated October 05, 2018 submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Fire extinguishers <i>containing compressed or liquefied gas</i>	2.2	UN1044	N/A
Oxygen, compressed	2.2	UN1072	N/A
Oxygen generator, chemical <i>(including when contained in associated equipment, e.g., passenger service units (PSUs), portable breathing equipment (PBE), etc)</i>	5.1	UN3356	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packagings are as follows:

(1) Non-specification cylinders authorized as fire extinguishers that meet the requirements of

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§ 173.309(c) except that the fire extinguisher is installed in the CRM in lieu of being packaged within outer packaging.

(2) DOT specification 3AA cylinders containing compressed oxygen. DOT specification cylinders are required to be periodically requalified and maintained as provided for in 49 CFR Part 180.

(3) Chemical oxygen generators meeting the requirements of 173.168 except that the chemical oxygen generator is installed within the CRM in lieu of being packaged within an outer packaging in accordance with 173.168(d).

b. OPERATIONAL CONTROLS:

(1) The items authorized in this permit must be installed in the CRM and maintained in accordance with the AMM Supplement, FEDEX B767-300F CREW REST MODULE INSTALLATION, Document No. 721930-AMM-001.

(2) The CRM will be loaded onto a pallet and secured with netting in an accessible position in accordance with § 175.75.

(3) No additional hazardous materials may be loaded into the CRM for transportation. No more than the hazardous materials amounts and quantities specified by the design drawings/sketches can be used for transportation.

(4) A DG ID Tag (FedEx 167172), as described in Federal Express Corporation's application dated October 4, 2018 and on file with OHMSAPD, must be affixed to the CRM entryway door knob via a plastic wire tie.

(5) The CRM must be reported and indicated on FedEx shipping papers, and must be reported on the Notice to the Pilot in Command (NOTOC).

(6) The fire extinguishers, oxygen cylinders and oxygen generators must be inspected before each transport operation to ensure that they are securely attached to the Crew Rest Module (CRM). Also, the CRM must comply with the applicable FAA regulations.

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(7) If the aluminum shell of the CRM is punctured, all hazardous materials must be removed from the CRM prior to transport for repairs/replacement.

c. MARKING: The exterior of each CRM must be marked "DOT-SP 20789". This marking may remain on the exterior of the CRM when installed or when the conditions 7.b.(7) are required to be met.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo-only aircraft.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo-only aircraft or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

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Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) – "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Andrew Eckenrode